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February 4, 2025

City Council
City of Haverhill
4 Summer Street
Haverhill, MA 01830

Special Permit Application-76 Summer Street, Haverhill, MA
City Council Rules and Regulations for Special Permits Information Required

General Criteria: General Special Permit Criteria

1. As required by the Special Permit criteria section of the Zoning Ordinance (Section 10.4.2), in order to grant a Special Permit, a Special Permit Granting Authority must make a written determination "that the proposed use or structure(s) shall not cause substantial detriment to the neighborhood or the City, taking into account the characteristics of the site and of the proposal in relation to that site." Under Section 10.4.2, "[i]n addition to any specific factors that may be set forth in th[e] [zoning] chapter, such determination shall include consideration of each of the following:
2. Community needs served by the proposal.
3. Traffic and pedestrian flow and safety, including parking and loading.
4. Adequacy of utilities and other public services
5. Neighborhood character and social structures
6. Impacts on the natural environment, and
7. Potential fiscal impact, including impact on City services, tax base, and employment.

Specific Findings Under Zoning Ordinance Section 10.4.2

- 8: Community needs served by the proposal.
- 9: Department of Mental Health has reviewed the need for the expansion project, which is proposing to add (24) beds to an existing (71)-bed facility for a total of 95 beds and has provided provisional approval based on assessed need. See attached letter from DMH. In 2024, Haverhill Pavilion deflected 1,354 geriatric referrals. Our current geriatric unit operated at a 97.1% occupancy rate in 2024.
- 10: Traffic and pedestrian flow and Safety, including parking and loading.
- 11: Careful attention has been given to traffic flow and pedestrian safety in this development plan. As part of the expansion, the design will update the facility to meet the latest ADA standards for parking and include an additional van-accessible handicap parking space. The main parking lot will

remain functional and largely unaffected by the project scope. Similarly, the rear asphalt area, primarily used for ambulance drop-offs and deliveries, will see minimal changes, with the addition of a new ambulance drop-off area incorporated into the expansion. These details are outlined in the provided site plan filed with this Application (see Sheet C5.0)

- 12: Adequacy of utilities and other public services.
- 13: The existing building is already connected to domestic water, fire service, and city sanitary systems, so no major utility extensions are required for this project. Independent sewer, fire, and sanitary connections will be established for the new building, all of which are detailed on the site plan and will be further coordinated with development services. The proposed site plan fully complies with Section 6.3.3(8) concerning utilities, security, and emergency systems, ensuring all new connections meet city standards without the need for special approvals. City Departments have raised no concerns about utility availability at this time, and the parcel's central location within the city provides ample utility access on all three sides. This favorable positioning allows for seamless integration of the expansion into existing infrastructure, minimizing disruptions and ensuring efficient service delivery. The project team will continue to collaborate closely with development services to confirm that all utility connections align with the city's expectations and requirements.
- 14: Neighborhood character and social structures.
- 15: The proposed addition is consonant with neighborhood character and social structures, as it will match the existing facility in materials and massing and represents no substantive change in the use or operation of the existing facility. The new addition will marginally increase the percentage of open space on the site and the replacement of asphalt with grass and landscaping will improve sightlines of existing parking. Unsightly elements such as dumpsters and a trash compactor will be shielded to the interior of the site, and the new emergency generator will be shielded on all sites by a concrete masonry unit enclosure finished with materials to match the existing building exterior. Applicant has met with the neighbors and reviewed this Application with them prior to submission. Property used to contain a 122 bed rehabilitation hospital.
- 16: Impact on natural environment.
- 17: There are no expected impacts to the natural environment as a consequence of this project. The new addition will marginally increase the percentage of open space on the site, and the replacement of asphalt with grass and landscaping will increase permeable areas, allowing for improved natural rainwater infiltration.
- 18: *Potential fiscal impact, including impact on City services, tax base, and employment.*
- 19: *This project will have no impact on city services. It is believed that this project will increase the tax base. No impact on schools.* Haverhill Pavilion will increase its staffing to operate the additional beds. This will create employment opportunities for both clinical and non-clinical staff.

Specific Findings Under Zoning Ordinance Section 6.3.3

- **Lighting:** The proposed lighting for this project will comply with city standard 6.3.3(1). The existing lot lighting will remain largely unchanged, with the addition of wall packs on the new building. These wall packs will be mounted at a maximum height of 15 feet and designed as full-cutoff fixtures to ensure no light is directed outward, minimizing glare and maintaining a focused, compliant lighting environment where required on site.
- **Noise:** The project will comply with city standard 6.3.3(2) as it pertains to noise. Construction will abide by the restrictions set forth in Chapter 182 of the Haverhill Code and 310 CMR 7.10 of the Department of Environmental Protection's regulations. The project's new emergency generator has been placed away from the lot line and has a built-in muffler to mitigate noise. This generator will be shielded on all sites by a concrete masonry unit enclosure to further mitigate noise. An existing

dumpster located on the periphery of the site will be moved to a courtyard shielded on three sides by building, which will reduce noise at times of refuse collection.

- **Landscaping: 6.3.3 (3) Screening and buffer area in I or C Districts.** A screening and buffer area shall be required in any I or C District which adjoins or abuts an R or S District at the side or rear of the property. This screening must consist of any one of, or some combination of, the following:
(1) A solid fence or wall not less than six feet in height. A fence presently exists along the west side of the building. Additional screening was provided in the northeast corner based on request from neighboring property owners at a neighborhood review meeting.
- **Stormwater Management:** The proposed stormwater plan will comply with city standard 6.3.3(4), as detailed in the provided site plan. The design ensures that post-construction peak flow rates will match pre-construction conditions, supported by preliminary calculation tables. Additionally, the replacement of asphalt with grass and landscaping will increase permeable areas, allowing for improved natural rainwater infiltration. The existing on-site storm line will be expanded to accommodate the new building while maintaining its current outfall to the city sewer beneath Sumer Street. All necessary Erosion Prevention and Sediment Control (EPSC) measures will be implemented during construction to minimize sediment displacement, protect nearby waterways, and maintain compliance with city regulations.
- **Site development Standards:** The proposed development plan complies with all site development standards outlined in Section 6.3.3(5). The area of disturbance has been carefully minimized to accommodate the building addition, ensuring the new footprint aligns seamlessly with the existing hospital facility. This thoughtful approach preserves the functionality of the site while reducing disturbance and maintaining accessibility for patients, staff, and visitors. Furthermore, new landscaping will be introduced to enhance the hospital grounds that also support improved stormwater management, soil stability, and sustainability, while adhering to city standards for healthcare facilities.
- **Pedestrian and Vehicular Access/Traffic Management:** As stated careful attention has been given to traffic flow and pedestrian safety in this development plan ensuring adherence to Section 6.3.3(6). The facility has operated in this capacity for an extended period without any reported issues related to traffic management or vehicular access. Pedestrian traffic and parking will continue to be located at the front, while ambulances and deliveries will be directed to the rear, maintaining separation of these traffic elements. The site currently has an excess of approximately 100 parking spaces, so the removal of the upper parking lot will not impact on the availability of parking for staff and patients, remaining within code requirements. Detailed parking requirements are outlined in the "Site Data Table" on sheet C0.0. Haverhill Pavilion plans on hiring an estimated (30) new staff members to facilitate the operations of the new unit. This increase in staff numbers does not trigger the need of a traffic study. Parking lot is within code for the proposed bed increase.
- **Aesthetics:** The proposed design of the building addition complies with the neighborhood compatibility requirement outlined in Section 6.3.3(7). The building addition will closely match the front façade of the existing facility in materials and massing, and will shield older and less-harmonious elements of the facility.
- **Utilities/Security/Emergency Systems:** The existing building is already connected to domestic water, fire service, and city sanitary systems, so no major utility extensions are required for this project. Independent sewer, fire, and sanitary connections will be established for the new building, all of which are detailed on the site plan and will be further coordinated with development services. The

proposed site plan fully complies with Section 6.3.3(8) concerning utilities, security, and emergency systems, ensuring all new connections meet city standards without the need for special approvals. City development services have raised no concerns about utility availability at this time, and the parcel's central location within the city provides ample utility access on all three sides. This favorable positioning allows for seamless integration of the expansion into existing infrastructure, minimizing disruptions and ensuring efficient service delivery. The project team will continue to collaborate closely with development services to confirm that all utility connections align with the city's expectations and requirements.

- Other General Standards: The proposed expansion will cause no substantive change in the current facility's compliance with Section 6.3.3(9). The expansion will not be conducted in a manner as to emit any dangerous, noxious, injurious or otherwise objectionable fire, explosion, radioactive or other hazard; noise or vibration, smoke, dust, odor or other form of environmental pollution; electrical or other disturbance; glare; liquid or solid, refuse or wastes; conditions conducive to the breeding of insects, rodents or other substance, conditions or element in an amount as to affect adversely the surrounding environment. All operations shall be conducted in such a manner so as to comply with the laws of the Commonwealth of Massachusetts regulating air pollution.

Based upon all of the above as well as all the plans and other documents filed with this Application, Applicant believes this Petition meets all the following requirements under Chapter 255 Section 10.4.2 for a Special Permit:

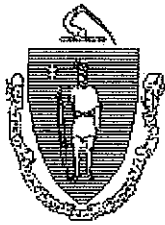
- A. The proposed addition will not cause substantial detriment to the neighborhood or the City taking into account the characteristics of the site (its size, location, and existing structure) and the proposal in regard to this site. The Lot currently exists. The Site has an existing structure/use, and the additional will not be detrimental to the neighborhood. No objections to this project were received during Pre-development Review.
- B. Community needs for additional psychiatric beds is served by this proposal. The increased beds have already been approved by the Department of Mental Health. See the letter attached.
- C. Traffic and pedestrian flow and safety have been addressed and required parking for a 95 bed facility is being provided. See Site Plan filed with this Application.
- D. Adequate utilities and other public services are all supplied for this project. Property is on city water and sewer.
- E. The neighborhood character and structures have been addressed in the architectural designs of this project. The addition fits this lot and will fit in the neighborhood.
- F. There will be no impact to natural environment.
- G. The project will increase the city's tax base, supplies greatly needed psychiatric beds, and has no adverse impact on City services or City Schools.

Wherefore, the Petitioner would request that the Council approve this Special Permit.

Respectfully submitted.



Robert D. Harb
Attorney For Applicant



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Department of Mental Health
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Boston, Massachusetts 02114-2575

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March 4, 2024

Felicia Risick
Division President Acadia
Haverhill Pavilion
76 Summer Street
Haverhill, MA 01830

Ms. Risick:

The Department of Mental Health (DMH) has reviewed and is providing provisional approval for a twenty-four (24) bed expansion to the current Haverhill Pavilion Behavioral Health located at 76 Summer Street, Haverhill.

The proposed expansion is to construct a new twenty-four (24) bed geriatric unit. The current twenty-one (21) geriatric unit will be converted to an adult unit once the newly constructed twenty-four (24) bed geriatric unit is completed and opened. Upon completion of the proposed twenty-four (24) bed geriatric unit, Haverhill Pavilion Behavioral Health will have a total of ninety-five (95) beds. Seventy-one (71) general adult beds and twenty-four (24) geriatric beds.

Please feel free to share this with interested parties and do not hesitate to email or call if you have questions on this or related matters.

Please ensure that there is ongoing communication with DMH on the progress of your construction project and any changes that may need to be made to the conceptual design drawing that was submitted and discussed with the Licensing team on February 22, 2024.

Once the expansion project is completed it will be necessary for Haverhill Pavilion to submit an application for licensing of the new twenty-four (24) geriatric beds.

Sincerely,

Martha M. Ryan, JD, MSN, RN
Assistant Commissioner for Clinical and Professional Service/ Director of Licensing

cc: Jeff Lenar, Chief Executive Officer, Haverhill Pavilion Behavioral Health